



Guidelines

Requests from Solicitors

If you would like to discuss anything in this privacy notice, please contact:

Data Protection Officer: **Data Protection Education Ltd.**

Telephone: 0800 0862018

Email: dpo@dataprotection.education

Requests from Solicitors

[Version 2019 v1.0]

If you are reading a printed version of this document you should check the Information Management pages on [the school network] to ensure that you have the most up-to-date version.

If you would like to discuss anything in this privacy notice, please contact:

Data Protection Officer: dpo@dataprotection.education

Requests from Solicitors

Document Version

Version	Author	Date	Approved by	Effective from
1.0 template	CM	30-06-19	JE	30-06-19

Requests from Solicitors

Contents

Requests For Information From Solicitors On Behalf Of Parents And What Schools Need To Consider	5
Inform The Data Protection Officer Of The Request And Keep Them Updated	5
Consider Whether Or Not The Child Concerned Is Competent	5
Verify The Identity And Authority Of The Solicitor And The Reason For The Request Being Made	6
Requests From Solicitors For Information When There Are Court Proceedings	6
Court Orders Requiring Schools To Disclose Information	7
Security Of Delivery Of Information	8

Requests from Solicitors

Requests For Information From Solicitors On Behalf Of Parents And What Schools Need To Consider

Schools can find themselves faced with requests for data or information from Solicitors who state they are acting on behalf of a parent. This is most commonly the case when parents are involved in court proceedings concerning their children. Every situation will be different and sometimes it will be necessary for schools to get legal advice from their legal advisors. The following is a guide as to what schools need to consider when solicitors request information on behalf of a client who is a parent of a child.

Inform The Data Protection Officer Of The Request And Keep Them Updated

This is good practice in order to ensure that the school provide a coordinated and documented response to all requests made. This is important to do as it may be necessary to consult and liaise with other key members of staff, such as the safeguarding lead, in order to address a request.

Consider Whether Or Not The Child Concerned Is Competent

In England and Wales, a child must be considered competent to exercise their rights under GDPR. Competence is assessed by considering the age and level of understanding of the child. A child would not be considered to be competent if it is evident that he or she is acting against their own best interests.

If a child is considered to be competent, then the school must get the consent of the child before the information or data of the child is released.

If the child concerned is not competent then a parent can exercise the rights of the child on his or her behalf.

Requests from Solicitors

Verify The Identity And Authority Of The Solicitor And The Reason For The Request Being Made

When a solicitor contacts the school requesting data or information on behalf of a parent, it is the duty of the school as a Data Controller and Data Processor to verify the situation and the authority of the Solicitor to act on behalf of the parent with the parent before any information is released. Verification of the situation will ensure that data and information is being released to the correct person who is entitled to receive it or a properly authorised person. It will ensure that data is not disclosed to the wrong person.

Schools can request the parent to confirm in writing that they are instructing the solicitor. This will ensure that the school have exercised due diligence in verifying the identity and the authority of the solicitor to make the request and receive the data or information on behalf of the parent who has instructed them.

Schools may be asked to provide data or information to a solicitor for a variety of reasons. The school can ask the solicitor to confirm the reason for the request being made in writing, if it has not been stated, so that this can be documented. Although most solicitors will be helpful and provide this information, a solicitor does not have to disclose his or her client's reasons for the request unless they have instructions to do so. The school can also ask the parent for this information so that it can be documented.

In the case of a competent child it would be particularly important to obtain this information from the solicitor or the parent in order to inform him or her of the reason for the request made in relation to their information or data, so that the competent child is aware can give informed consent to the release of data.

Requests From Solicitors For Information When There Are Court Proceedings

A request made by a solicitor, on behalf of a parent of a child, when there are proceedings before the court, could essentially still be a Subject Access Request (SAR), unless the request is made as a result of an order from the court or is made under the rights conferred to parents under the Education Act to obtain a copy of the educational record of the child. A SAR does not have to be in any particular prescribed form. If the solicitor has authority to act on behalf of their client to request information or the data of their client or that of the client's child, then with written confirmation of this having been obtained, the request can be dealt with in the usual way and must be dealt with within one month of the request having been made. If the school have informed the DPO of the situation from the start, they will be able to assist with issues in relation to data protection compliance by the school.

Such requests can be made for many reasons. There may be issues before the court concerning the welfare of the child. There may also be safeguarding concerns documented by the school

Requests from Solicitors

that will require careful consideration before information is released. The request may relate to these issues or it might not. The school may or may not hold the information requested. Whatever the circumstance and situation, the school has to ensure compliance with their various statutory obligations and duties when dealing with requests for information. If it is apparent that the situation is a complicated matter, which is of concern to the school, the school should consult their legal advisors in order to obtain independent legal advice. This advice should then be communicated to the DPO as soon as it is received and documented.

It is important to remember that a solicitor making the request on behalf of a parent as a client is only entitled to the data or information held in respect of their client or the child of their client. They are not entitled to the data or information of anyone else or the other parent. As data controller and processor the school has a duty to ensure that the data or information of any other individual is protected and therefore not disclosed. The school must ensure that the data or information released is not such that it would identify another person other than school employees. Redaction and anonymisation where necessary can be used to ensure this. If redaction or anonymisation does not ensure this, then the consent of the other individuals will be required unless there is a legal reason under GDPR to disclose the information without their consent.

If a competent child does not consent to the release of their information or data to the solicitor acting on behalf of his or her parent, then the school should not release it.

If there are reasons to believe that the release of information or data will cause serious harm to the child or another individual whether competent or not then the school may rely upon this exemption, which must stand up to outside scrutiny, to withhold the release of the data or information requested.

Court Orders Requiring Schools To Disclose Information

If an order is made by a court in respect of a child, whether competent or not, then failure to comply with the order will result in the school being in breach of the order made. Orders made by a court will contain a warning which clearly states this.

If a Judge makes a court order requiring schools to release information or data held in respect of a child, it would be usual for the Judge to also specify, on the face of the order, that it be served upon the school either by a sealed copy being sent by post or by a sealed copy being sent to the school by one of the solicitors acting for the parties involved in the court proceedings. Once the school have had sight of the sealed court order, the school will be able to deal with the information request made by the court. ***If the school has any concerns they should consult with their legal advisors.*** The school can also call the court if they have concerns about the order made or in order to verify the order made or to clarify its contents.

If the school receive a request for information or data from a solicitor but have not been served with a copy of the sealed order then the school should ask to see a copy of it so that the school can verify that an order has been made and to understand what information or data has been

Requests from Solicitors

requested so that the school can document the request and properly comply with the order of the court.

It is important that the school responds to the request for information made in a sealed court order by the date stated in the order. If this is not done then the school will be in breach of the order. If the school cannot comply then they must inform the court as soon as possible so that the court is aware of the situation. The address of the court and other contact details, including the court office telephone number, will be given on the order made. The name of the Judge who made the order and the court case number will also be contained on the face of the court order. Schools can address any correspondence to the Judge at the court where the order made and should use the case number as a reference. The school's legal advisors will be able to assist if the school need help dealing with these matters.

All court orders served on the school should be retained for future reference as well as the responses made by the school for so long as the child remains educated at the school.

Security Of Delivery Of Information

Schools must always remember that information must always be sent in a secure manner no matter who makes the request. This is necessary to comply with GDPR and to ensure that only those entitled to the information have sight of it. This is particularly important if the information contains sensitive data and schools should always use encryption and password protection when sending in electronic form whenever possible in order to protect it (please refer to best practice guidance).

If information or data is being posted, secure recorded signed for postal services should be used after verifying the correct postal address has been provided and is being used. A postal receipt should be obtained and kept. If information or data is to be sent by courier, then a trusted courier who offers a secure service should be used and a receipt should be obtained and kept. If the information is to be collected in person, and it is not the data subject who is collecting it, then ask the person collecting the information or data to provide photographic proof their identity. A passport or photo driving licence are good accepted forms of visual identification. If information is to be posted a recent utility bill can be requested to confirm an address for secure postal purposes.

A note should be made of the methods the school used to verify identity and correct postal address so that the school can document due diligence in respect of verification.